

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA**

*In the matter of an Application for
Orders in the nature of Writs of
Certiorari, Prohibition and Mandamus
under Article 140 of the Constitution of
the Democratic Socialist Republic of Sri
Lanka.*

CA (Writ) App. No. 812/2023

1. Free Trade Zones & General
Services Employees Union
(FTZGSEU),
No. 141, Ananda Rajakaruna Mawatha,
Colombo 10.
2. W.L.D.Anton Marcus,
No. 141, Ananda Rajakaruna Mawatha,
Colombo 10.
3. L. Karunathilake,
No. 141, Ananda Rajakaruna Mawatha,
Colombo 10.
4. S.P. Jayanthi Premachandra,
No. 111/A/2, Henepola,
Pamunuwatta, Mirigama.
5. A. Deepani Chandrika Kumari,
No. G/20/1, Abidigala, Galapitamada.
6. S.H. Inoka Manel,
No. 96/A, Danwalana, Veyangoda.
7. S. Renuka Pushpa Kumari Pillawatta,
Gasnawa, Thulhiriya.
8. W. Chandani Lanka,
No. 88/A, Demalagala, [W/P]

9. G.P.Aruna Shanthi,
No. 137/B, Haggala, Ellakkala.
10. P. Pradeep Sampath,
No. 11/2, Thilinagama, Mirigama.
11. J. Nirmala,
No. 27/B/1, Walpola,
Rukgahawila.
12. R. D. Sumithra Rupasinghe,
No. 33/5, Katuwagoda Road,
Veyangoda.
13. K.M. Renuka,
Dippita Kanda,
Welipenna, Mathugama.
14. M.A. Lakmali Subashini,
No. 53/1, Orcharwatta,
Nittambuwa.
15. Udenika Balasuriya,
No. 294/1/B, Hansagiri Watta Rd,
Gampaha.
16. S.M. Sundari,
No. 110/C, Troi Watta,
Ruwanwella.
17. E.A. Shyamale Edirisinghe,
No. 14/1, Epamula,
Veyangoda.
18. P.H. Ruwani Thakshila Senevirathna,
No. 151, Rukmale, Veyangoda.
19. H.P. Priyanthika Aruna Kumari,
No. 23, Rukmale, Veyangoda.

20. H.M. Sumith Prasanna,
206, Helakanda, Horampella.
21. M.K. Chathurika Priyadarshani,
521/D, Pannila, Rukgahawila.
22. B. Nirmala Padmini Fernando,
89/39, Nayiwala, Veyangoda.
23. B.H.N. Rohana Dharmarathna,
Thanthirigama, Makulwewa,
Kurunegala.

PETITIONER

Vs.

1. B.K.P. Chandrakeerthi,
Commissioner General of Labour,
Department of Labour,
Labour Secretariat,
"Mehewara Piyasa", Colombo 05.
2. W.A.D.S. Wickramaarachchi,
Deputy Commissioner of Labour,
Termination Division,
Department of Labour,
Labour Secretariat,
"Mehewara Piyasa", Colombo 05.
3. K.D.M. Priyantha,
Commissioner – Industrial
Relations Division,
Department of Labour,
Labour Secretariat,
"Mehewara Piyasa", Colombo 05.
4. Assistant Commissioner of Labour,
Gampaha District Labour Office,
6th Floor, "Laksiyane Mandiraya",
Colombo Road, Gampaha.

5. Sumithra Hasalaka (Private) Limited,
No. 30, Ranpokunagama, Nittambuwa.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

S.H.A. Mohamed with Laknath Senevirathne and Laduka Senanayake for the
Petitioners.

Mohamed Adamaly, P.C., with Nishadi Wickramasinghe and D. Wickramarachchi
Anoukshi Vidanagamage instructed by Shanya Wickramaratne for the 5th Respondent.
Nayomi Kahawita, S.S.C., for the 1st to 4th Respondents.

Argued on: 19.12.2025

Delivered on: 23.09.2026

Dr. D. F. H. Gunawardhana, J.,

Judgement

Introduction

The 1st Petitioner is a trade union under the name and style of "Free Trade Zones & General Services Employees Union" (FTZGSEU), while the 2nd Petitioner is its secretary. The 3rd to 23rd Petitioners are its members.

The 1st Respondent is the Commissioner General of Labour, while the 2nd Respondent is the Deputy Commissioner of Labour. The 3rd Respondent is the Commissioner of the Industrial Relations Division of the 1st Respondent, and the 4th Respondent is the Assistant Commissioner of Labour. The 5th Respondent is a body corporate incorporated under the laws of Sri Lanka, capable of suing and being sued in its corporate name, and the employer of the 3rd to 23rd Petitioners. The 5th Respondent had made an application to the 1st Respondent on the matter relating to paying half-wages to certain employees, including the 3rd to 23rd Petitioners, which the 1st Respondent allowed by his decision contained in **P7**.

The Petitioners challenge the decision of the 1st Respondent contained in **P7**, allowing the said application of the 5th Respondent and to lay-by the services of the 3rd to 23rd Petitioners, made in terms of Section 2 of the Termination of Employment of Workmen (Special Provisions) Act, No. 45 of 1971 (as amended) (hereinafter sometimes referred to as the "TEW Act" or "the Act").

After the issuance of formal notice and the filing of the Respondents' respective Objections, this was argued before a bench where the late Justice Karalliyadde and myself were members on 19.12.2025; however, as late Justice Karalliyadde undertook to write the judgement, finally, the parties agreed to adopt all proceedings before me; hence, this judgement.

Factual matrix

The Petitioners claim that the 1st Petitioner is the Trade Union of which the 3rd to 23rd Petitioners are its members. The 2nd Petitioner is its Secretary, while the 3rd to 23rd Petitioners have acted on behalf of the other Petitioners, at all times material to this Application.

It is common ground that the Petitioners that the 3rd to 23rd Petitioners were employed by the 5th Respondent company at its Nittambuwa plant. On 07.09.2023, the 5th Respondent made an application to the 1st Respondent seeking permission to lay-by the services of the 3rd to 23rd Petitioners. The 1st Respondent referred the matter to the 2nd Respondent to inquire; and thereafter, the 1st Petitioner sought permission to represent the 3rd to 23rd Petitioners before the said inquiring officer, namely the 2nd Respondent; such permission was granted.

Thereafter, according to the Petitioners, an inquiry was conducted by the 2nd Respondent; the proceedings of the said inquiry are marked as **P3** and **P6** annexed to the Petition.

Subsequently, the 2nd Respondent permitted the parties to file their respective written submissions. The written submissions of the 5th Respondent are annexed to the Petition marked as **P4**, whilst the written submissions filed on behalf of the Petitioners are marked as **P5**. The proceedings are also marked as **P6**. Based on the report prepared by the 2nd Respondent, the 1st Respondent made the decision marked as **P7** dated 16.10.2023.

Instead of granting permission to lay-by the services of the 3rd to 23rd Petitioners, together with 241 employees, for a period of six months, the 1st Respondent, by the decision contained in **P7**, permitted the 5th Respondent to lay-by the services of 241 employees for a period of three months only, commencing from 17.10.2023 until 16.01.2024, and placed them on half of their basic salary.

The Petitioners seek to challenge the said decision on the basis that it is *ultra vires*, illegal, and irrational. The 1st Petitioner responded to the decision contained in **P7** by **P8**, to which the 1st Respondent replied by **P9**.

Objections

The 1st to 4th Respondents have filed their respective Objections, while the 5th Respondent has filed its Objections separately.

In the objections filed by the 1st to 4th Respondents, reference has been made to three documents marked as **R1**, **R1(a)**, and **R2**. The document marked **R1** is the same document as **P7**, whilst **R1(a)** consists of the proceedings and recommendations made by the 3rd Respondent, upon which the 1st Respondent based the decision marked as **R1**, which is the same as **P7**. In addition, **R2** is the report submitted by the inquiring officer.

Therefore, it is the position of the 1st to 4th Respondents that the said decision is justified and falls within the ambit of their powers under the TEW Act No. 45 of 1971.

Therefore, it is a legally sound decision and moved for the dismissal of this Application.

According to the position of the 5th Respondent, during the post-Covid period in 2023, there was a setback in the apparel industry resulting in low demand for garments produced in Sri Lanka; thus, there was a drop of orders received by the 5th Respondent, which made the services of several of its employees redundant at the Nittambuwa plant belonging to the 5th Respondent. Therefore, the 5th Respondent had taken a decision not to immediately retrench them, but to lay-by their services until they receive more orders in the future to resurrect their industry.

Thus, some of the employees were transferred from the Nittambuwa plant to other plants of the 5th Respondent, while it was compelled to take a decision to lay-by the services of certain employees, including the 3rd to 23rd Petitioners. Accordingly, it had made an application to the 1st Respondent in terms of Section 2 of the TEW Act.

Furthermore, it is the position of the 5th Respondent that it initially gave notice to all relevant stakeholders, including the 1st to 23rd Petitioners, by **5R1**, that the factory would be closed after the month of September. However, all employees were to be kept on full salary during the month of September, and thereafter was paid half-wages up until January 2024, notwithstanding the fact that their services would not be required for six months.

Thereafter, by **5R2**, the 5th Respondent made an application to the 1st Respondent seeking permission, under the TEW Act No. 45 of 1971, to place 241 employees on half salary for a period of six months without obtaining their services by **5R2**; the said document marked **5R2** is the same as **P1**, and the list of the said 241 employees has also been annexed thereto. Thereafter, the 5th Respondent asserts that according to the 1st Petitioner, by **5R3**, objected to the notice **5R1** and sought permission to represent the 3rd to 23rd Petitioners before the 1st and 2nd Respondents when the inquiry commenced into the application made by **5R2**.

Thereafter, the 5th Respondent filed its written submissions, which have been marked as **5R6**. It is the position of the 5th Respondent that certain employees consented to being placed on 50% of their wages for a period of three months, except the 3rd to 23rd Petitioners and certain other employees. In addition to that, affidavits to that effect have been annexed and marked as **5R15**.

It is further the position of the 5th Respondent that, as the 1st to 4th Respondents had delayed taking a decision on the application made by **5R2**, the matter was referred to the Presidential Secretariat,

as evidenced by **5R8**. Further correspondence between the 5th Respondent and the 1st to 4th Respondents has been marked as **5R12** and **5R14**.

Therefore, it is the position of the 5th Respondent that the 1st and 2nd Petitioners represented the other Petitioners throughout the proceedings before the 1st to 4th Respondents and that, accordingly, the Petitioners were afforded a full hearing. In addition, it is the position of the 5th Respondent that the application was made in terms of Section 2 of the TEW Act No. 45 of 1971, under which the 1st Respondent is vested with wide powers, including the power to grant permission to terminate employment where factories or offices are closed.

However, in the present case, the 1st Respondent merely granted permission to place the 241 employees on half salary without retrenching them. Accordingly, it is contended that the 1st Respondent acted within the scope of his statutory powers, and the 5th Respondent has therefore sought the dismissal of this Application.

However, it is also the position of the 5th Respondent that some of the employees were transferred from the Nittambuwa plant to other plants, with some of them reporting to work while the others vacated their posts.

Further, it is its position that the 1st and 2nd Respondents have taken a legally valid decision in terms of the law and are empowered to do so; as such, moved for the dismissal of this Application of the Petitioners.

Arguments

It is argued for and on behalf of the Petitioners, by Mr. Mohamed, that the 1st Respondent has exceeded the powers conferred on him in terms of the TEW Act. Further elaborating this argument, Mr. Mohamed argues that the powers of the 1st Respondent are encapsulated in Section 2 of the

Act, and having referred to the said Section, it is his argument that the Commissioner General can exercise his discretion conferred by the Act, only to decide whether a workman can be terminated or not.

Secondly, it is argued that in view of the amendment brought in 1974, unless there is a termination consequent to a punishment imposed, all other acts or reasons of termination, including temporary discontinuation, amounts to termination. Therefore, in this case, allowing the application **P1** made by the 5th Respondent pursuant to holding an inquiry through the 2nd Respondent, and the decision taken by the 1st Respondent based on the determination of the 2nd Respondent, is ultra vires for allowing the 5th Respondent to keep the 3rd to 23rd Petitioners under half pay which amounts to termination.

Countering this, on the other hand, it is argued by Mr. Adamaly, learned President Counsel, for and on behalf of the 5th Respondent that under the TEW Act, the 1st Respondent as the Commissioner General, has enormous powers.

Accordingly, it is true that initially, on the application of the employer, the 1st Respondent can grant permission to terminate the employment of an employee; however, it has to be exercised with due caution because the rights of the employee also needs to be looked after by the Commissioner General under the TEW Act.

In addition to that, it is argued for and on behalf of the 5th Respondent that one has to look at the TEW Act as a whole and not only on the plain reading of Section 2 of the Act. It is argued that the 1st Respondent is expected and required by the TEW Act to strike a balance when there is a dispute. Discretion is only used judiciously by the Commissioner General when it is sought by the employer

to terminate an employee. In addition to that, the Commissioner General is empowered to take any other decision other than mere termination.

Mr. Adamaly, learned President Counsel's last submission is that in that background, in this case, the 5th Respondent on its own has placed its employees on half pay due to the redundancy of their service; even without obtaining their services, the 3rd to 23rd Petitioners are placed on half pay during the said three months period. Therefore, it is quite justified and is within the law. As such, the Petitioners' argument cannot be maintained.

Now I will consider this argument first.

Legality of 'P1'

It is the arguments advanced for and on behalf of the Petitioners that the 1st Respondent has exceeded his limits by granting permission to place the 3rd to 23rd Petitioners on half pay without obtaining their services. Now I will consider this in the background that caused the 5th Respondent to seek such permission from the 1st Respondent.

According to the 5th Respondent, the post-Covid period had caused a downturn in the apparel industry, resulting in the drop of demand of production or granting any orders to the 5th Respondent for the production of garments; thus, the garments produced at the 5th Respondent's Nittambuwa plant came to a standstill, and consequently, resulting in the standstill of the operations of the said plant.

In that background, the 5th Respondent had given prior notice that during the month of September 2023, the services of 241 employees are not required due to the non-operational situation of the plant. As such, they were placed on payment of full salary without obtaining their services. However, in the meantime, on 07.09.2023, the 5th Respondent had made the application **P1 (5R2)**

to the 1st Respondent to make an order in terms of Section 2 to place the said employees on half-pay basis despite the fact that their services were not obtained during the next three months starting from 17.10.2023 to 16.01.2024.

Pursuant to that, the 1st Respondent had referred the matter to the 2nd Respondent, who had held an inquiry. For the inquiry, the 2nd Respondent had notified all the relevant stakeholders including the Petitioners and the 5th Respondent, who is the party who made the said application. However, at the inquiry, all other employees never had an issue or dispute with the 5th Respondent, except the 3rd to 23rd Petitioners, who were represented by the 1st and 2nd Petitioners physically, while they claimed to have been the members of 1st Petitioner.

After hearing the parties during the two days of inquiry, the 2nd Respondent had called for written submissions, and in fact, the 2nd and 3rd Respondents had filed their joint submissions on behalf of the 4th to 23rd Petitioners, as borne out by the Petitioners' document marked as **P5** annexed to the Petition. After considering the same and having obtained a report from the 4th Respondent on the ground situation, the 2nd Respondent has reported to the 1st Respondent to take a decision contained in **P7** on the application made by the 5th Respondent since there are objections from the Petitioners as well.

Having considered the said report (**R2**) of the 2nd Respondent, the 1st Respondent has decided to grant the 5th Respondent permission to place the said employees, whose services were no longer required since operations of the 5th Respondent's Nittambuwa plant had come to a standstill without any orders from clients, on half-pay. However, some of the said employees were given the opportunity to transfer to other plants owned by the 5th Respondent; out of which, only some of them had reported to work while others had not gone, and consequently, causing vacation of post by those who had not reported to work although they were transferred to other plants.

In those circumstances, only the 1st to 23rd Petitioners have challenged the said decision in this Application. In fact, after **P7** was published, only the 1st to 2nd Petitioners have responded to the same by **P8**. Thereafter, the 1st Respondent had further explained as to why he had to take such a decision contained in **P7** by **P9**.

Accordingly, it is my view that in those circumstances, the 1st Respondent had not taken a decision either to terminate or not to terminate the employment of the said employees, as argued by the Petitioners. However, it is my view that the 5th Respondent had never sought permission to terminate the employment of the said employees and to pay compensation consequent to such termination; the 5th Respondent had only sought permission to keep the said employees on half-pay basis, given that their services were not obtained during the three months starting from October 2023 to 16th January of the following year (2024), along with the full payment of their salary for the month of September 2023.

In that background, it is my view that what is required by the Commissioner General, who has enormous powers under the TEW Act, is to strike a balance between the Petitioners and the 5th Respondent. In this case, without granting any other application, the 1st Respondent has only granted permission to keep the 3rd to 23rd Petitioners under half pay, which falls under the 1st Respondent's purview since he has been given enormous powers under the Act.

It must also be remembered that the TEW Act was introduced in 1971 by the United Front Government since the retrenchment of employment commenced prior to the acquisition or nationalisation of various industries and private enterprises or corporations. In addition to that, due to the harsh economic conditions, private-owned enterprises could not survive, and as such, the circumstances compelled them to retrench employees without compensation. Thus, the TEW was introduced by the United Front party-led Government. Later, in 1974, an amendment was

introduced, by which further provisions were introduced to Section 2, where it provides for except for the case of imposition of a punishment, an employee's service is meant to be terminated, even on temporary discontinuation of service.

In this case, the Petitioners argue that placing the said 241 employees on half-pay basis amounts to temporarily discontinuation of their employment, which is tantamount to termination of their employment in terms of Section 2 (as amended).

For further clarity, the relevant part of Section 2 of the TEW Act is reproduced below and reads thus;

2. (4) For the purposes of this Act, the scheduled employment of any workman shall be deemed to be terminated by his employer if for any reason whatsoever, otherwise than by reason of a punishment imposed by way of disciplinary action, the services of such workman in such employment are terminated by his employer, and such termination shall be deemed to include -

(a) non-employment of the workman in such employment by his employer, whether temporarily or permanently, or

(b) non-employment of the workman in such employment in consequence of the closure by his employer of any trade, industry or business.

However, it must be borne in mind that no application has been made to retrench any employee; it is only that their services are no longer required as there are no functions continuing in the Nittambuwa plant (there is no demand for labour as there is no demand for production). Thus, the 5th Respondent continues to maintain them even without terminating their employment or doing any act which is tantamount to termination.

As such, it is my view that such temporary measure was taken just to survive in the industry until they receive or obtain orders to recommence production in the Nittambuwa plant. Thus, it is my view that the 1st Respondent's decision contained in **P7** is quite justified and within the parameters of his empowerment.

Upon a perusal of the TEW Act No. 45 of 1971, it is evident that, in order to secure the rights of the employees, the Commissioner General has been given enormous powers. According to Section 5, when an employer terminates the employment of a workman; in terms of the provisions of this particular Act, such termination can be declared illegal, null and void, and on such declaration, and shall have no effect. In such situations, in terms of Section 6, the Commissioner General can take a decision that such employee whose services have been terminated shall be treated as if his employment has not been terminated and that he continues to be in the same employment, and is entitled to the same benefits, salaries, perks and wages. If the employer does not comply with such an order, he can be charged before a Magistrate's Court in terms of Section 6.

However, when an employment is terminated as a consequence of the closure of an industry, the Commissioner General is further empowered to order to pay such sum of money as compensation or, as an alternative, order reinstatement, together with such other benefits payable to other employees by the employer, in terms of Section 6A.

Therefore, the Commissioner General, having enormous powers in terms of this Act, and if such powers are given, including the power to allow certain terminations and declare such illegal termination as wrong or illegal, and to order to pay such compensation or order reinstatement, as the case may be, in such a scenario, if common sense is applied, where an industry is nearly going for a closure due to the fact that no orders have been received by the industry to proceed with its operations, the following questions would be taken into consideration;

- (i) Is it unreasonable for the employer to place the employees on half wages instead of proceeding with the closure of such an industry?
- (ii) Is it unreasonable, illegal and *ultra vires* for the 1st Respondent, who is empowered to take a decision, including the matters referred to above, including allowing termination, to allow such an application?

Powers of the Commissioner General under the TEW Act

The TEW Act was introduced under the First Republican Constitution of 1972, during the time the Government tried to achieve Socialism through legislation. Therefore, strictly speaking, if it was under the previous Constitution of 1946, if a statutory body like the Commissioner General under the TEW Act was proposed to be introduced, it would have definitely been challenged in light of various constitutional concepts.

Since the TEW Act was introduced in the 1970s, including the 1974 Amendment to the TEW Act, it appears that nobody has seriously challenged it. Nevertheless, the Constitutional Court operating under the First Republican Constitution never had the power to strike down a proposed Bill at the Bill stage, except for giving an opinion on whether such a proposed Bill should be passed by 2/3rd majority or simple majority. Thus, even unconstitutional laws could have been passed under the First Republican Constitution of 1972.

This is evident in the Decision of the Constitutional Court on the Sri Lanka Press Council Bill,¹ where the questions raised by the petitioners that the provisions of the Sri Lanka Press Council Bill are inconsistent with the Constitution be brought under the following heads;

¹ Decisions of the Constitutional Court of Sri Lanka Volume 1 [1973].

(1) The Bill vests the executive governmental power in a non-governmental body, namely, a corporation, and, therefore, it is unconstitutional.

(2) The Bill vests governmental power in a body which is corporation and, therefore, it is unconstitutional.

(3) The provisions of Clauses 3, 4, 10, 16, 24 and 25 and 33 of the Bill violate the guarantees contained in Section 18(1) of the Constitution, namely, the fundamental rights and freedoms, in particular Section 18(1)(a) which states that all persons are equal before the law and are entitled to equal protection of the law, and Section 18(1)(g) which states that every person shall have the right to freedom of speech and expression, including publication.

(4) The provisions of Clause 16(1), (2), (4), and (5) or any one or more of them violate the guarantees contained in Section 18(1)(a) and/or Section 18(1)(g) of the Constitution.

(5) The Bill violates the provisions of Section 18(1)(a), namely, the equality before the law provision by reason of the exclusion of government newspapers.

(6) The provisions of Clause 15 of the Bill are inconsistent with Section 6 and Section 18(1)(d) of the Constitution.

However, the following excerpts of the decision of the Constitutional Court epitomise the gravity of the fragile framework of the 1972 Constitution, and the way the Legislature attempted to achieve Socialism through Legislation, by introducing statutory bodies with more powers, including legislative power.

We have also to remember that there is nothing in the Constitution prohibiting the creation of such institutions or corporations. Therefore, in the absence of definite prohibitive provisions, our view is that the Constitution is flexible enough to enable their creation and to vest State power in them. But that is not governmental power as invested in departments of the State.

We agree with the Attorney General's submission that the Press Council Bill the powers specifically assigned to a Minister can be regarded as executive power of the State, but not so the powers and functions of the Council; and thus, the proposed Bill has eschewed the making of the functions of the Council into executive powers of the State.

Though enormous powers were given to the Commissioner General, who was also created by statute, the Commissioner General's powers are not defined in that sense under the TEW Act. Additionally, in view of Articles 16 and 168 of the present Second Republican Constitution of 1972, all existing laws already brought into operation under the previous Constitution continues to operate. Therefore, nobody can challenge the constitutionality of the TEW Act and the powers given to the Commissioner General therein. Thus, the TEW Act remains intact, and although several authorities, including the cases of *Liyanage and Others v. Commissioner of Labour and Others*,² *Jayawardena and Another v. Pegasus Hotels of Ceylon Limited and Others*,³ and *Samalanka Limited v. Weerakoon, Commissioner of Labour and Others*,⁴ were cited, none of them use a leading light in the interpretation of Section 2 of the TEW Act or the objective that the Legislation proposed to achieve in terms of the TEW Act.

² [2004] 2 Sri L.R. 23.

³ [2004] 2 Sri L.R. 39.

⁴ [1994] 1 Sri L.R. 405.

Therefore, it is my view that unless the Legislature in its wisdom takes steps to reduce the powers of the Commissioner General under the TEW Act in view of Articles 3 and 4 of the Constitution, on the grounds that the Judicial power of the people should only be confined to the Judiciary, the statutory authorities created by the Statute can still continue to exercise its powers in view of the very same Articles as well as Articles 16 and 168 of the Constitution.

Thus, I cannot find fault with the powers exercised by the Commissioner General in taking a decision on the application made by the 5th Respondent in **P1 (5R2)**, as it is for the Legislature to reduce the powers conferred on the Commissioner General in view of the modern constitutional democratic concepts, where the Judicial power is only entrusted and given to the Judiciary.

However, there is no authoritative judgement to use as a reading light to interpret Section 2 of the TEW Act in such a manner, except certain judgements given by the Superior Courts that I have mentioned above, in addition to the judgement relied upon by both parties. Even in those judgements, the Courts have considered that the enormous powers given to the 1st Respondent cannot be curtailed by interpretation, unless the Legislature in its wisdom decides so in the modern constitutional context.

Thus, it is my view that, although it is not expressly provided for in the Act, it is implied that the 1st Respondent is empowered to take such a decision.

As such, it is my view that the decision of the 1st Respondent contained in **P7** is *intra vires*.

Legality of 'P7'

The Petitioners' next argument is that the decision so taken by the 1st Respondent contained in **P7** is illegal, capricious, and without any evidence; therefore, a *Writ of Certiorari* lies to quash the same.

However, as I mentioned above, dealing with the issue of vires of the decision taken by the 1st Respondent contained in **P7**, it is my view that in the circumstances that compelled the 5th Respondent to obtain permission (application requested for six months but permission was given for three months) to keep the 3rd to 23rd Petitioners under half pay is quite justified, and the same has been granted not with the objective of final termination of the employment of the said Petitioners, but to resurrect the industry with future operations.

As such, the decision of the 1st Respondent contained in **P7** is justified, rational, and legal. Thus, the said argument advanced by Mr. Mohamed should also fail.

Rules of Natural Justice followed by the Respondents

The third argument advanced by Mr. Mohamed is that the Petitioners were not given an opportunity by the 2nd Respondent when he prepared the report for the 1st Respondent to make the decision in **P7** thereupon.

According to the documents adduced as evidence by the Petitioners, the 2nd Respondent had commenced the inquiry into the application made by the 5th Respondent on **P1 (5R2)**. Pursuant to that, the 2nd Respondent had notified all the relevant stakeholders. In fact, other than 3rd to 23rd Petitioners, all other 241 employees never disputed the position taken by the 5th Respondent; however, the 1st and 2nd Petitioners have represented the 3rd to 23rd Petitioners

Furthermore, they were permitted to file written submissions, which they have also done as reflected in **P5**. There were several days of inquiry, as reflected in **P3** and **P6**, and all the parties were fully heard before making any recommendations. The report of the inquiry officer were made by **R2** filed by the 1st to 4th Respondents.

Therefore, it is my view that all stakeholders were properly notified and heard, and thus, the rules of natural justice were properly followed and adhered to, and there is no error on the face of the record.

Whether writs lie in this Application

The next matter that has been raised by the 5th Respondent is that Petitioners have failed to establish whether the writs they seek in this Application lie.

Based on the above circumstances, it is my view that the Petitioners have failed to establish as to why a *Writ of Certiorari* lies to quash the decision contained in **P7**. In addition to that, the Petitioners have failed to establish as to why the decision to take further actions as recommended by the other Respondents or directed by the 1st Respondent based on **P7**, is irrational.

Therefore, it is my view that the Petitioners have failed to establish that they are entitled to any writs either to quash **P7** or any other writs as sought in the prayers to this Petition. Thus, it is my view that this Application is liable to be dismissed.

Conclusion

For the reasons adumbrated above, I dismiss this Application but without costs.

JUDGE OF THE COURT OF APPEAL